

		<i>v. Brownco Construction Co.</i> (2013) 56 Cal.4th 1014, 1026 (“Finally, section 998 expressly states an award of expert witness fees is discretionary.”); <i>Santantonio v. Westinghouse Broadcasting Co., Inc.</i> (1994) 25 Cal.App.4th 102, 121. Defendants originally sought \$116,772.93 in expert witness fees. In their recent motion, they offered a reduction of \$8,359.50. Based on Plaintiff’s original objections, the court will tax \$81,649.18, for an award of costs in the amount of \$35,123.75.
2.	2024-1424513 Brown vs. The Kroger Co	Plaintiff Colton Brown’s motion for a new trial is denied. The requirements and grounds for new trial are entirely statutory; they are stated in Code Civ. Proc. § 657, and are as follows: 1. Irregularity in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. 2. Misconduct of the jury. 3. Accident or surprise, which ordinary prudence could not have guarded against. 4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. 5. Excessive or inadequate damages. 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. 7. Error in law, occurring at the trial and excepted to by the party making the application. A motion for a new trial is a proper vehicle for relief following the erroneous grant of a motion for summary judgment. (Wegner et al., Cal. Practice Guide: Civil Trials and Evidence (The Rutter Group 2022) ¶ 18:196, citing <i>Collins v. Sutter Memorial Hospital</i> (2011) 196 Cal.App.4th 1, 22.) A court may also grant a partial new trial on some of the issues. (<i>Pacific Corporate Group Holdings, LLC v. Keck</i> (2014) 232 Cal.App.4th 294, 302.) Plaintiff moves for a new trial with respect to the Court’s 6/18/26 ruling granting Defendant Ralphs Grocery Company’s motion for summary judgment. Plaintiff bases his motion on Subd. (5), (6), and (7) of Code Civ. Proc., § 657. Procedurally, Plaintiff’s motion is defective and in violation of the Rules of Court. At 19 pages, it exceeds the maximum page limit of 15 pages set forth in CRC, Rule 3.1113(d). A memorandum exceeding the page limit “must be filed and considered in the same manner as a late-filed paper.” (CRC, Rule 3.1113(g).) A court may

refuse to consider a late-filed paper. (CRC, Rule 3.1300(d).) “A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for the late submission.” (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

This is not the first time that Plaintiff has not complied with the Rules of Court.

Plaintiff’s separate statement in support of its opposition to Defendant’s motion for summary judgment likewise was not in compliance with CRC, Rule 3.1350.

Plaintiff’s motion is denied for the dual reasons that it fails to comply with the Rules of Court, and it lacks merit, as discussed below.

In reaching this decision, the Court has not considered Plaintiff’s Compendium of Evidence filed in support of his motion. (ROA 157; Code Civ. Proc., § 658.)

Plaintiff asserts the following arguments.

First, Plaintiff contends that the evidence supported a reasonable inference that the water was already on the floor when Mr. Wyant passed through the aisle at 11:18 a.m. and would have been discovered by a proper inspection. The only evidence that supports that the water was on the floor when Wyant passed through with his broom is that Plaintiff fell on water less than two minutes later. On the other hand, evidence was submitted that between the time of the sweep and Plaintiff’s fall, five individuals (including Wyant who was following the path of the broom/mop) walked directly over the area in question without difficulty and without slipping or falling. (Defendant’s Ex. B.) It is not reasonable to infer therefore that there was a large puddle of water on the floor which Wyant and four other customers walked over without noticing or slipping on.

Second, Plaintiff argues that whether an inspection satisfied the standard of care is ordinarily a question of fact for the jury. (*Sapp v. W.T. Grant Co.* (1959) 172 Cal.App.2d 89, 94 [whether the defendant’s inspection practice was “commensurate with the exercise of ordinary care” was “a question that was properly left with the jury to decide”]; *Bridgman v. Safeway Stores, Inc.* (1960) 53 Cal.2d 443, 447-448.) The Court’s ruling was based on the issue of Ralph’s notice of the alleged dangerous condition. Per *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206, Plaintiff had the burden of proving that Ralphs had actual or constructive knowledge of a

dangerous condition and time to correct it, or that Ralphs was able, by the exercise of ordinary care, to discover the condition. Plaintiff failed to do so. Plaintiff's evidence that the sweep should have been performed in an S motion does not establish a triable issue of fact as to whether Ralphs should have discovered (and remedied) water on the floor.

Third, Plaintiff takes issue with the Court's ruling on the objections to the Burns Declaration, stating that while the Court addressed Defendant's eight objections, it did not "identify whether it was sustaining or overruling Defendants' objections to the remainder of Mr. Burns' declaration." Plaintiff's argument here is confusing. (Motion at 15:24-16:1.) Defendant asserted only 8 separate objections to the Burns Declaration, as well as a blanket objection to the entire declaration, all of which were ruled upon.

Fourth, Plaintiff argues that he submitted direct evidence that Ralphs knew of the water before Plaintiff fell. Plaintiff cites to two pieces of evidence: Plaintiff's Deposition (Ex. F) and the Lujan Declaration (Ex. G), and states that immediately after the incident a Ralphs manager stated to Plaintiff and to the witness Bryce Lujan that he was already aware of the spill and had intended to have an employee stationed at the location to keep customers away from it before the incident occurred. (Exh. F at pp. 36:21-37:4; Exh. G at ¶ 4.) This is a misrepresentation of the evidence. This evidence does not establish that Ralphs was aware of water on the floor before the fall. The manager's statements occurred after being alerted to the water and Plaintiff's fall. No evidence was presented to show a spill of water before the sweep.

Fifth, Plaintiff contends that a deficiency in an opposing party's separate statement is not a mandatory ground for summary judgment. Code Civ. Proc., § 437c(b)(3) provides only that the failure to comply with the separate-statement requirement "may constitute a sufficient ground, in the court's discretion, for granting the motion." That discretion arises only where the moving party has first carried its own burden. Plaintiff is not wrong here. The Court acknowledged this and noted in its ruling, stating that the court in *Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086 notes that "subdivision (b) of section 437c allows the court, in its discretion, to grant summary judgment if the opposing party fails to file a proper separate statement," so long as it is determined that the moving party meets its initial burden of proof.

Then, the Court found not only that Plaintiff failed to file a proper separate statement; but he additionally fails to demonstrate the existence of any triable issues of material fact as set forth below. The Court granted Defendant's motion on both grounds, expressly

		finding that Defendant met its burden in establishing that Plaintiff lacks evidence to support the duty element of his claims. (ROA 128.) Sixth, Plaintiff contends that the deposition of Ryan Wyant was necessary to the Court’s decision. Plaintiff did not request that the Court continue the motion pursuant to Code Civ. Proc., § 437c(h). This is not a reason to grant a motion for a new trial. Seventh, Plaintiff generally argues that there is insufficient evidence to justify the granting of the motion. Plaintiff repeats his arguments and seems to confuse the parties’ burdens. It is not Defendant’s burden to establish that it did not have actual or constructive knowledge of the water; it is Plaintiff’s. (See <i>Ortega v. Kmart Corp.</i>, <i>supra</i>, 26 Cal.4th at 1203.) Finally, Plaintiff’s argument regarding excessive damages (Code Civ. Proc., § 657(5) is nonsensical. It is axiomatic that one may complain of inadequate damages only where damages were found. No damages were awarded in the ruling that Plaintiff contests. Based on the foregoing, Plaintiff’s motion for a new trial is denied. Defendant’s request for judicial notice is granted. Defendant shall give notice.
4.	2026-1552790 Saadian vs. Beach Executive Plaza, LLC	Defendant Beach Executive Plaza, LLC’s (“Defendant”) Motion to Expunge Lis Pendens is granted. Defendant moves, under CCP section 405.22 et seq., for an order expunging the lis pendens filed and recorded by Plaintiffs Jonah Saadian and Brandon Saadian (collectively, “Plaintiffs”) on 3/11/26 in the Official Records of the Orange County Clerk-Recorder (see ROA 11). Defendant contends the lis pendens should be expunged, because Plaintiffs have not effected proper service and cannot meet their burden of showing the probable validity of their real property claim. The Court agrees that Plaintiffs did not comply with the pre-filing requirements of CCP section 405.22, which requires the claimant to, “prior to recordation of the notice, cause a copy of the notice to be mailed, by registered or certified mail, return receipt requested, to all known addresses of the parties <i>to whom the real property claim is adverse</i> and to all owners of record of the real property affected by the real property claim as shown by the latest county assessment roll.” (Code Civ. Proc., § 405.22, emphasis added.) The record reflects that there are five other persons with an interest in the